

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yonce Hitt	Team: Squad #14	CCRB Case #: 202202341	☒ Force ☐ Discourt. ☒ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 04/09/2022 1:00 AM, Wednesday, 06/28/2023 12:10 PM	Location of Incident: Grand Avenue between Park Place and Prospect Place, Civilian Complaint Review Board	18 Mo. SOL 12/28/2024	Precinct: 01
Date/Time CV Reported Mon, 04/11/2022 11:38 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 04/11/2022 11:38 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Thomas Napolitano	03282	940682	CRD SPARTA

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Alicia Dionisi	03408	952752	BKROBSQ

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Thomas Napolitano	Force: On April 9, 2022, on Grand Avenue between Park Place and Prospect Place in Brooklyn, Detective Thomas Napolitano pointed his gun at § 87(2)(b)	A . Unable to Determine
B . DT3 Thomas Napolitano	Abuse: On April 9, 2022, on Grand Avenue between Park Place and Prospect Place in Brooklyn, Detective Thomas Napolitano threatened § 87(2)(b) with the use of force.	B . Unable to Determine
C . DT3 Thomas Napolitano	Untruthful Stmt.: On June 28, 2023, at the Civilian Complaint Review Board, Detective Thomas Napolitano provided a misleading official statement to the CCRB.	C . Substantiated

Case Summary

On April 11th, 2022, § 87(2)(b) filed the following complaint with the CCRB via the call-processing system.

On April 9th, 2022, at approximately 1:00 a.m., § 87(2)(b) walked home with two of his friends, § 87(2)(b) and § 87(2)(b) on Grand Avenue between Prospect Place and Park Place in Brooklyn. While crossing the street, § 87(2)(b) observed Detective Alicia Dionisi, of the Brooklyn Robbery Squad, who was off duty at the time of this incident, sitting in her car. § 87(2)(b) waved at her and wished her a good night. Within seconds, Detective Thomas Napolitano, assigned to the Joint Robbery Task Force, who was also off duty, drove up to where § 87(2)(b) and § 87(2)(b) were. Detective Napolitano exited his vehicle while holding a gun. Detective Napolitano then pointed the gun at § 87(2)(b) (**Allegation A: Force, unable to determine**) and told § 87(2)(b) that he knew the group was going to rob Detective Dionisi. Detective Napolitano and § 87(2)(b) engaged in a verbal argument, during which Detective Napolitano threatened § 87(2)(b) and said, “Well come on then, bring it on,” (**Allegation B: Abuse of Authority, unable to determine**). All parties ultimately left the location and no arrests or summonses resulted from this incident.

On June 28th, 2023, at approximately 12:10 p.m., at the Civilian Complaint Review Board located at 100 Church Street in Manhattan, Detective Napolitano provided a misleading official statement to the CCRB (**Allegation C: Untruthful Statement, substantiated**).

There is no body-worn camera footage in this case as the officers were off duty and thus not equipped with BWCs.

Findings and Recommendations

Allegation (A) Force: On April 9, 2022, on Grand Avenue between Park Place and Prospect Place in Brooklyn, Detective Thomas Napolitano pointed his gun at § 87(2)(b)

§ 87(2)(b) testified (BR 01) that at the time of the incident, he left the Dorsett Lounge with § 87(2)(b) and § 87(2)(b) and walked on Grand Avenue to get home. § 87(2)(b) was not intoxicated. While crossing Grand Avenue, § 87(2)(b) observed Detective Dionisi sitting in her car parked on the side of Grand Avenue. § 87(2)(b) recognized Detective Dionisi as a police officer because of his previous involvement with community affairs. While crossing the street, § 87(2)(b) waved at Detective Dionisi, wished her a pleasant evening, and told her to get home safely. Within seconds, Detective Napolitano drove up Grand Avenue and exited his vehicle where § 87(2)(b) and § 87(2)(b) were standing. Detective Napolitano held a black gun in his right hand. Detective Napolitano pointed the gun at § 87(2)(b) face for approximately one minute and yelled something to the effect of, “I heard what you said. You were going to rob her.” § 87(2)(b) tried to clarify to Detective Napolitano that he was not trying to rob Detective Dionisi, however, Detective Napolitano repeated that he “heard what [he] said.” § 87(2)(b) and § 87(2)(b) each began to record on their cell phones.

Detective Dionisi exited her vehicle and stood in front of Detective Napolitano, at which point, Detective Napolitano placed his gun into the back waistband of his pants. § 87(2)(b) started to walk away, and Detective Napolitano stated again, “You was going to rob her.” § 87(2)(b) told Detective Napolitano that he worked for FedEx, pulled out his ID and said that Detective Napolitano was wrong and “an asshole.” § 87(2)(b) and § 87(2)(b) then walked away and Detective Napolitano and Detective Dionisi drove away.

In phone statements, § 87(2)(b) (BR 02) and § 87(2)(b) (BR 03) each testified that during their walk home, § 87(2)(b) said goodnight to Detective Dionisi while she sat in her vehicle, at which point, Detective Napolitano pulled up, pointed his gun at § 87(2)(b) and accused him of attempting to rob Detective Dionisi. § 87(2)(b) described that Detective Napolitano ultimately placed the gun in his back pocket or back waistband.

Event § 87(2)(b) (BR 04), documented that § 87(2)(b) called 911 at 1:00 am. In the audio of § 87(2)(b) 911 call (BR 05), § 87(2)(b) states at the 0:24 timestamp, “An individual

of the department just pulled a gun out. We were trying to help a lady and he's saying we were trying to rob her. We did not say nothing wrong to the lady or nothing." The Event Summary did not document any further 911 calls regarding this encounter beyond § 87(2)(b). § 87(2)(b) provided two cell phone videos of the incident (BR 06, BR 07), one recorded by § 87(2)(b) and the other recorded by § 87(2)(b) and each were sent to § 87(2)(b) via text message. Both videos are blurry and poorly pixilated, likely due to degradation from being sent to § 87(2)(b) via text and then sent to the CCRB. The two videos are nearly identical in both length and in the portion of the incident that is captured. The video taken by § 87(2)(b) (BR 06) is 1:31 long and the video taken by § 87(2)(b) is 1:24 long (BR 07). In both videos, Detective Napolitano is captured standing in the street, next to the open driver's door of his vehicle and facing towards § 87(2)(b) who is partially in the frame. Detective Dionisi is standing in front of Detective Napolitano, separating him and § 87(2)(b). Detective Napolitano and § 87(2)(b) are engaging in a back-and-forth wherein Detective Napolitano states that § 87(2)(b) was trying to rob Detective Dionisi, and § 87(2)(b) is arguing that he was not and just wishing her a good night. At 00:52 second mark in § 87(2)(b) video and the 00:49 mark in § 87(2)(b) video, Detective Napolitano turns slightly to his left, thus exposing the back-right waistband of his pants. There is a black, L-shaped object sticking out the back right pocket of Detective Napolitano's pants, though the object is not fully discernable due to the video's quality.

After the initial CCRB interviews of Detective Napolitano and Detective Dionisi, § 87(2)(b) (BR 08) provided the CCRB with the original video footage (BR 09) recorded by his cell phone, which captured a much clearer version of the video evidence. At the 0:52 timestamp in § 87(2)(b) original cell phone footage, the video clearly captures that the previously undiscernible object in the back of Detective Napolitano's pants is a gun, as evidenced by the visible black handle as well as the shape of the gun's barrel, which is visible through Detective Napolitano's jeans (minute mark 1:21).

In his initial CCRB interview on June 28th, 2023, Detective Napolitano testified (BR 12) that at the time of the incident, he left an NYPD office building known as "the Annex" located at the corner of Grand Avenue and Park Place in Brooklyn. Detective Napolitano was parked across the street from the building while Detective Dionisi was parked approximately 10 car lengths down the street, towards Prospect Avenue, on the same block as Detective Napolitano's vehicle. Once inside his vehicle, Detective Napolitano saw three men walking up the opposite side of the street of the Annex and observed § 87(2)(b) tap one of the other two men and state, "Yo," loudly while pointing at Detective Dionisi, who was almost at her car. Detective Napolitano did not hear anything else but interpreted this to mean that § 87(2)(b) wanted to go after Detective Dionisi and possibly attack or rob her. Detective Napolitano then observed the three men walk quickly towards Detective Dionisi, who got inside her car and closed the door. Detective Napolitano drove towards Detective Dionisi's car, as § 87(2)(b) approached Detective Dionisi's driver's side door and § 87(2)(b) and § 87(2)(b) approached Detective Dionisi on the passenger side. § 87(2)(b) then tried to open Detective Dionisi's car door.

Detective Napolitano pulled up to Detective Dionisi's car from behind and flashed his vehicle's lights, honked his horn, and yelled that they were police officers to get the men's attention. § 87(2)(b) waved Detective Napolitano on, as if to allow him to continue driving past them while still having his hand on Detective Dionisi's car door. Detective Napolitano continued to flash his lights, honk his horn, and yell out the window that they were police officers. § 87(2)(b) then approached Detective Napolitano's vehicle in an "aggressive" manner due to him walking quickly with his right hand either in his jacket pocket or inside of his jacket. Detective Napolitano exited the vehicle, standing between the car and the opened car door. § 87(2)(b) approached Detective Napolitano with his body bladed and Detective Napolitano held up his left hand and placed his right hand on his holstered firearm, which was holstered on his front right hip.

§ 87(2)(b) and § 87(2)(b) followed and § 87(2)(b) got within one foot of Detective Napolitano, and said something to the effect of, "Look at this motherfucker, look at this guy? Who

does he think he is?" Detective Napolitano moved toward the rear of his vehicle in order to better see the three men. The lighting conditions were dark due to trees blocking the streetlight, but it was more lit near the rear of his vehicle. Detective Napolitano was concerned for both his and Detective Dionisi's safety and believed that § 87(2)(b) was intoxicated because he smelled like alcohol and marijuana, his eyes were glassy, and his speech was slurred. Detective Napolitano did not observe any visible bulges on § 87(2)(b) though either § 87(2)(b) or § 87(2)(b) had one of their hands behind their back, as if holding a weapon. Detective Napolitano repeatedly told the men "Just get the fuck out of here, just go, just go." § 87(2)(b) instructed the two other men to start recording, and they immediately pulled out their phones and started to record.

Detective Dionisi then exited her vehicle and got between § 87(2)(b) and Detective Napolitano and yelled to calm down and § 87(2)(b) started to change his tone to, "act like a victim" once his friends began recording. Ultimately, § 87(2)(b) and § 87(2)(b) walked away from the interaction and Detective Napolitano could not recall specifically how the situation concluded.

Detective Napolitano denied that he drew or pointed his firearm at any point during the interaction. Detective Napolitano maintained that for the entirety of the incident, his gun was holstered on his front right hip, where he always keeps it, next to his exposed shield. Detective Napolitano confirmed that he always wore his gun in his front hip area because it was comfortable and easy to access. Detective Napolitano denied that he holstered his gun in any other locations on his body besides on his front right hip.

Detective Napolitano was then shown the 1:24 long video footage provided by § 87(2)(b) and recorded initially by § 87(2)(b) (BR 07). Detective Napolitano watched the entire video. Detective Napolitano's attention was directed to the 00:49 minute mark and the black object protruding from the area of his rear pocket. Detective Napolitano identified the object in question as his black underwear and denied that his firearm was there. Detective Napolitano testified that in his history as a Detective, he never placed his gun in his rear waistband area.

Detective Napolitano was re-interviewed for this case on August 16th, 2023, after the investigation received the original video footage provided directly by § 87(2)(b). Detective Napolitano was shown the additional video from § 87(2)(b) and a screenshot of the video from the 0:52 timestamp (BR 10). Detective Napolitano acknowledged that the black bulge visible in his back right pocket of his pants in this moment was his firearm. Detective Napolitano testified that he did not recall ever drawing his gun, but now understood that he did unholster his firearm given this video evidence. Detective Napolitano testified that he must have unholstered his firearm at the beginning of the interaction but could not recall anything further beyond having pointed it at the ground. Detective Napolitano could not recall how long his firearm was drawn for and maintained that he did not point his gun at § 87(2)(b) during this incident. Regarding the inconsistencies between his first CCRB interview and second CCRB interview regarding always holstering his gun on his front hip and having never unholstered his gun during this incident, Detective Napolitano explained that he fell back into his training without mentally realizing it and maintained that he did not independently recall drawing his gun.

Detective Dionisi was interviewed on July 13th, 2023, and testified (BR 14) that after completing her tour, she left the office building with Detective Napolitano and walked to their respective cars. As Detective Dionisi approached her vehicle, she observed three men, known to the investigation as § 87(2)(b) and § 87(2)(b) walk up Grand Avenue and cross the street towards her. Detective Dionisi entered her vehicle and placed her bags on her passenger seat. When Detective Dionisi turned back, § 87(2)(b) and § 87(2)(b) were now at her vehicle, with § 87(2)(b) standing at her driver's side door, another on the sidewalk, and the other by the passenger seat. Detective Dionisi could not recall anything § 87(2)(b) and § 87(2)(b) said or did and could not recall if § 87(2)(b) ever touched her vehicle.

After a few seconds, Detective Dionisi observed § 87(2)(b) take a step back from her vehicle and wave, as if to signal to someone behind her to keep moving. Detective Dionisi then

observed Detective Napolitano's car behind her vehicle. Detective Dionisi heard § 87(2)(b) and Detective Napolitano engage in a verbal argument, though she could not recall what was said, at which point, she exited her vehicle and got between § 87(2)(b) and Detective Napolitano to prevent their interaction from escalating. Detective Dionisi described § 87(2)(b) demeanor as "aggressive" and recalled that at one point, § 87(2)(b) took out his wallet and showed the officers his work ID. § 87(2)(b) was defensive and cursing and made comments about how he "would not do that." Detective Dionisi did not recall seeing any bulges on § 87(2)(b). Detective Dionisi testified that she never lost sight of § 87(2)(b) hands during the interaction, except for the moment that he reached into his pocket for his wallet. Detective Dionisi told § 87(2)(b) and § 87(2)(b) to go home, and they began walking away. Detective Dionisi returned to her vehicle and as she was leaving, § 87(2)(b) and § 87(2)(b) recorded her and her license plate. § 87(2)(b) and § 87(2)(b) followed on foot as Detective Dionisi drove from Grand Avenue to Washington Avenue and ultimately drove away from the location. Detective Dionisi never observed Detective Napolitano draw his firearm.

Patrol Guide Procedure 221-01 (BR 15), states that an officer's decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. Furthermore, NYPD Patrol Guide Procedure 221-01 states that officers must use "only the reasonable force necessary to gain control or custody of a subject." It further adds that, "In determining whether the use of force is reasonable, members of the service should consider the following: nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of MOS; size, age, and condition of the subject in comparison to the MOS; subject's violent history; presence of hostile crowd; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence."

It is undisputed that § 87(2)(b) and § 87(2)(b) interacted with Detective Dionisi at her vehicle. § 87(2)(g)

During § 87(2)(b) 911 call audio, § 87(2)(b) contemporaneous statement was that after "trying to help" Detective Dionisi, Detective Napolitano pulled his gun out. § 87(2)(g)

it is therefore recommended that this case be closed as **unable to determine**.

Allegation (B) Abuse of Authority: On April 9, 2022, on Grand Avenue between Park Place and Prospect Place in Brooklyn, Detective Thomas Napolitano threatened § 87(2)(b) with the use of force.

§ 87(2)(b) testified that Detective Napolitano stated something to the effect of, "Well come on then, bring it on" after § 87(2)(b) proactively showed Detective Napolitano and

Detective Dionisi his work ID.

The original video footage from § 87(2)(b) (BR 09) showed at the 0:18 timestamp Detective Napolitano state, “Come see me whenever you are ready.”

Detective Napolitano acknowledged that he made the comment, “Come see me whenever you are ready,” as shown in the aforementioned video. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation B be closed as Unable to Determine.

Allegation (C) Untruthful Statement: On June 28, 2023, at the Civilian Complaint Review Board, Detective Thomas Napolitano provided a misleading official statement to the CCRB.

As discussed in Allegation A, Detective Napolitano initially denied ever drawing his gun during the interaction. Upon reviewing the video footage provided by § 87(2)(b) and recorded by § 87(2)(b) Detective Napolitano was directed to look at the black item observed in the video at the 00:49 minute mark and identify it. Detective Napolitano testified that it was “probably [his] black underwear.” In a second interview, after being shown additional video evidence, Detective Napolitano acknowledged that at some point during the interaction, he drew his gun from his holster and placed it in his back right pocket but maintained that he did not recall doing so.

During his initial interview on June 28, 2023, Detective Napolitano testified the following:

- At the 10:04 timestamp, while Detective Napolitano provided his initial statement and prior to any specific questions he stated, “There was no physical force. I did not pull my gun and point it at any point.”
- At 42:33, the investigation asked, “Did you have your firearm with you?” Detective Napolitano responded, “Yes, I always carry it.” The investigation then asked, “And where exactly was it?” Detective Napolitano responded, “I carry it in the front, in my holster with my shield right next to it.”
- At 43:15, Detective Napolitano stated, “I’m wearing it exactly the way I had it that night. I can show if you want me to show you, if you’re okay with me showing you.” At 43:26 Detective lifted up his shirt and showed his firearm, holstered on his right front hip, next to his shield. Detective Napolitano then stated, “This is exactly how it- and you can see all of this.” The investigation then explained, “And just for the record, because this is audio only, the firearm is tucked in the right front part of your pants on the right side. The handle is sticking out and pointing toward the shield, which is on the right side of your body, closer to your hip.”
- At 45:14, the investigation asked, “During this interaction, my understanding is that your gun was visible at the front right side of your pocket, did you ever touch it at any point?” Detective Napolitano responded, “I believe that I had my arm out, my body was bladed, obviously in a tactical- and my hand was on my gun. As a, obviously, cause of the way he was standing with his hand in his jacket pocket or under. In my head I’m like, I need to be prepared in case this goes south. I’m completely outnumbered, there’s three versus one and I knew that if he pulled a gun, which he was, he was emulating that he had one and as well as the other guy with his hand behind his back. So, in my head I’m like there’s three versus one, I’m definitely going to get hurt here. There’s no doubt about it. If a weapon comes out, I’m going to get hurt because I’m outnumbered and I’m the only one. Detective [Dionisi] didn’t carry her gun. I’m the only one here to defend the both of us and I was in complete fear for my safety and hers at that time. So, my hand was bladed, my hand was on my gun and this arm was out, as I was taught, to keep some type of distance in case I need to react.”
- At 46:18 the investigation asked, “And at what point during this interaction was your hand

placed on your gun?” Detective Napolitano responded, “I mean, there was like times where it was on there and then if I saw that his demeanor changed, and my hands would be up. I know there’s video of it, I don’t know exactly, you know, when I didn’t do it, you know, but I know there were points in time when I felt that I needed to get in a position where is about to go down and I need to be prepared.”

- At 46:44 the investigation asked, “And outside of placing your hand on the handle of your gun, did you ever do anything else with that gun?” Detective Napolitano responded, “No I never, I never pulled it and pointed it at anybody.”
- At 46:56 the investigation asked, “Was it ever taken out of the holster in any way?” Detective Napolitano responded, “No.”
- At 46:58 the investigation asked, “Do you have any other holsters?” Detective Napolitano responded, “Yeah, I mean I have an off-duty gun. I have other holsters, but this was the one that I was wearing.” The investigation followed up, “Okay, but for those other ones, where do you normally- are they also for your right or are they for any other part of your body?” Detective Napolitano answered, “My off-duty gun has a leather holster similar to this one with the clip in the front that I would also wear in the front. I always wear the gun here. This is a comfortable spot for me it’s easy for me to get to.” The investigation then asked, “Any other locations at all?” Detective Napolitano responded, “No.”
- At 57:14 the investigation asked, § 87(2)(b) alleges that at approximately 12:50 am on April 9th, him and his two friends were walking across the street and a car pulled up at their location, an officer exited the vehicle holding a gun and pointed it at § 87(2)(b). Is this true to your recollection?” Detective Napolitano answered, “No.”
- At 58:20 the investigation asked, “He does allege that the gun was pointed, he also alleged that the gun was drawn. Did you ever take the gun out of the holster?” Detective Napolitano responded, “No.”
- At 1:04:31, while the investigation was showing Detective Napolitano the initial video footage provided via § 87(2)(b) the investigation asked, “And at this point [in the video], your gun is where on your person?” Detective Napolitano stated, “In the front.”
- At 1:04:51 the investigation asked, “I’m going to pause right here at 0:48 second, I understand the quality of this video is not ideal. Do you know where on your person the weapon is at this point in time?” Detective Napolitano responded, “It’s in the front.” The investigation followed up, “I just want to draw your attention to, from this angle I can see kind of a plaid flannel shirt and what appear to be like a white shirt. Is that true?” Detective Napolitano responded, “Yes.” The investigation continued, “And then the blue jeans and the work boots?” Detective Napolitano responded, “Yes.” The investigation then asked, “I just also want to draw your attention to what appears to be this discoloration on the side of the screen. Do you know what this is?” Detective Napolitano responded, “It’s probably my black underwear. My t-shirt, I kind of tuck it into my underwear. It’s probably my underwear sticking up passed my pants.”
- At 1:10:00, while showing video from § 87(2)(b) at the 0:49 timestamp of the video, the investigation asked, “So just to clarify, we have a slightly different angle, we can still see the plaid shirt, the white undershirt, and the jeans. I can still see this slight black discoloration. Does this refresh your recollection of what this item is?” Detective Napolitano responded, “No. If I had to venture a guess, it’s my underwear.”
- At 1:10:40 the investigation asked, “Just to kind of cover it more specifically, to your knowledge, at any point during this incident, did you ever move the gun to your back area?” Detective Napolitano responded, “Not that I remember. No.”
- At 1:10:54 the investigation asked “Just to cover the allegation specifically § 87(2)(b) alleged that after the gun was pointed, the officer kind of placed it in either his back pocket or his back waistband with the grip hanging out. Did that ever happen?” Detective

Napolitano responded, “No.” The investigation followed up, “And in your career as a police officer, have you ever put your gun in the back of your waistband?” Detective Napolitano answered, “I mean, no. I always carry it here, around my pancake holster.” In the second interview with Detective Napolitano and after being presented with the original video footage received directly from § 87(2)(b) Detective Napolitano testified the following:

- At 7:54 timestamp Detective Napolitano testified, “That appears to be my gun” when directed to the black object in his rear pants pocket in § 87(2)(b) original video footage. The investigation asked, “Okay, so you previously testified that your gun was holstered in the front right of your belt. Can you speak to this discrepancy?” Detective Napolitano responded, “Well to my recollection, my gun was in the front. I don’t recall moving it but I can only assume, well I can only speculate that at some point during the altercation that it was removed from the holster and secured in the back.” The investigation asked, “And to the best of your recollection, at what point did this occur?” Detective Napolitano answered, “To the best of my recollection, I would say in the beginning of the altercation, prior to— after he attacked her and came to me.” The investigation asked, “When you say he attacked her, what do you mean?” Detective Napolitano responded, “Uh, better choice of words, after he aggressively approached her car, he then aggressively approached me at my car.”
- At 10:07 the investigation asked, “During this interaction, did you draw your department-issued firearm?” Detective Napolitano responded, “When you say draw, what do you mean by that.” The investigation answered, “I mean take it out of the holster.” Detective Napolitano responded, “You’re not saying pointed.” The investigation responded, “No those are two very different—.” Detective Napolitano then interrupted to say, “Removing it from the holster is what I am trying to tell you, at some point it was removed from the holster and put in my back pocket.”

NYPD Administrative Guide 304-10 (BR 17) defines a misleading statement as, “A statement that is intended to misdirect the fact finder, and materially alter the narrative by: intentionally omitting a material fact or facts, making repeated claims of ‘I do not remember,’ or ‘I don’t know,’” when a reasonable person under similar circumstances would recall, or have been aware of, such material facts, or altering and/or changing a member’s prior statement or account when a member of service is confronted with independent evidence indicating that an event did not occur as initially described, will generally be considered a misleading statement.”

During Detective Napolitano’s initial testimony, he repeatedly denied taking his gun out of the holster during the incident. Upon reviewing video provided by § 87(2)(b) Detective Napolitano incorrectly identified the black object in his back right pocket as his underwear. Detective Napolitano was given multiple opportunities to speak on whether or not the gun was drawn and denied the allegation multiple times. Only upon reviewing clearer footage in his second interview, Detective Napolitano ultimately acknowledged that his gun must have been removed from the holster at some point during the interaction. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation C** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party.
- Detective Napolitano has been a member of service for 17 years and has been a subject in 17 CCRB complaints and 35 allegations, of which 8 were substantiated (**BR 18**):
 - 201010420 involved a substantiated allegation of physical force against Detective Napolitano. The Board recommended charges and the NYPD imposed no penalty.

- 201609591 involved a substantiated allegation of an entry against Detective Napolitano. The Board recommended Command Level Instructions and the NYPD imposed formalized training.
- 201701615 involved a substantiated allegation of an entry and a substantiated allegation of gun pointed against Detective Napolitano. The Board recommended Command Discipline A and the NYPD imposed no penalty.
- 201807213 involved substantiated allegations of an entry, property damage, search of premises and threat of arrest against Detective Napolitano. The Board recommended charges and the NYPD imposed no penalty.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of September 13th, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**BR 19**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint was filed prior to the establishment of the RPBP Unit.

Squad: 14

Investigator:	_____	Inv. Hitt	_____
	Signature	Print Title & Name	Date
Squad Leader:	Cassandra Fenkel	IM Cassandra Fenkel	11/6/2023
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date